STANDARD OPERATING PROCEDURE			P-6410
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA GREG LONDON SHERIFF	DATE ISSUED 08/13/07	DATE REVISED **05/05/16**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL: K-9 UNIT	RESOURCES			
SUBJECT K-9 INVOLVED USE OF FORCE	CROSS REFERENCE G-2100 COMPLAINT PROCEDURE G-6100 USE OF FORCE/FORCE CONTINUUM G-6110 USE OF FORCE REPORTING REQUIREMENTS			

I. Purpose:

The purpose of this policy is to establish the guidelines for K-9 involved use of force incidents including reporting requirements and K-9 involved damage to property.

II. Policy:

The deployment of a K-9 constitutes a real or implied use of force. The use of a K-9 to bite or restrain a suspect shall be considered at the same level as an intermediate weapon on the use of force continuum (see G-6100 Use of Force/Force Continuum). As in other cases, K-9 handlers may only use that degree of force that reasonably appears necessary to apprehend or secure a suspect as governed by the use of force policy. Handlers who encourage a K-9 to take an unjustified bite or who allow a K-9 to continue to bite unnecessarily shall be subject to disciplinary action and/or removal from the K-9 Unit. The following procedures shall be adhered to when a K-9 may be or is involved in a use of force incident.

III. Procedure:

A. K-9 Use of Force Criteria: Generally, if a K-9 handler believes a subject may be bitten, a K-9 should not be deployed under the following circumstances:

a) The subject is a young child.
b) The subject is an elderly or infirm individual.
c) The subject is wanted for only a minor offense.
d) The subject does not pose an immediate threat to the safety of deputies or others and is not attempting to evade or resist arrest.
e) The subject is mentally ill or under the influence of drugs or alcohol and no other crime is involved.

B. **K-9 Bite or Suspect Apprehension (On-Duty):** K-9s may be used to apprehend suspects when it is reasonable to believe the suspect has committed a felony or serious misdemeanor and the suspect is actively resisting arrest, attempting to evade arrest or presents an immediate threat to deputies or others. When apprehending suspects, the K-9 shall be commanded to disengage as soon as the suspect is subdued or readily complies with the K-9 handler's directions. Whenever a K-9 has bitten, struck or scratched an individual in the line of duty, the following procedures shall be adhered to.

1. The K-9 handler shall immediately notify the supervisor or command officer in charge of the shift or incident. The supervisor or command officer shall respond to the scene and investigate the incident (see G-2100 Complaint Procedure). The K-9 handler shall also notify the K-9 Unit Commander as soon as possible.

2. The supervisor or command officer shall notify the on-duty watch commander or ADC.

3. The on-scene supervisor or command officer shall photograph the subject and the bite areas as well as any secondary injuries resulting from the deployment of the K-9.

4. Medical Attention: Although the sole intent in the use of a K-9 is to detain and/or restrain a subject, the potential for injury exists. When a K-9 has been used, the subject shall be advised that medical attention is available if desired. The K-9 handler shall provide appropriate first aid and the subject shall be transported to a medical facility if:

a) The subject requests medical attention.
b) The subject was bitten.
c) The subject sustains an injury from a fall after impact from a K-9.

5. If the subject has sustained substantial injuries, the on-scene supervisor or command officer shall request the on-call investigator respond to investigate the incident.

C. **K-9 Use of Force Reporting**: With the exception of training, K-9 handlers shall document all uses of force involving a K-9 in accordance with Sheriff's Office use of force reporting requirements (see G-6110 Use of Force Reporting Requirements). On all uses of force involving a K-9, the Use of Force Report form shall be completed and shall include:

a) A brief description of the incident.
b) All verbal commands provided to the subject and the time frame between the commands and deployment of the K-9.

c) The actions of the K-9 including number of bites and locations of bites, if known.
d) Medical treatment, if any, provided to the subject.
e) A description of the subject's actions after being bitten or struck by the K-9.
f) A description of any injuries sustained by the subject including secondary injuries that may have occurred.
g) A description of any injuries sustained by the K-9.

D. K-9 Bite (Off-Duty): Whenever a K-9 has bitten or scratched an individual off duty or has alleged to have done so, the following procedures shall be adhered to:

a) The K-9 handler shall immediately notify the K-9 Unit Commander. If the K-9 Unit Commander is unavailable, the K-9 handler shall notify the ADC.

b) The K-9 handler shall complete an incident report detailing the circumstances surrounding the incident, the identity of the individual involved and any witnesses, and the extent of any injuries.

c) The K-9 Unit Commander shall ensure the ADC is notified and shall conduct a line investigation regarding the incident (see G-2100 Complaint Procedure).

E. Damage Resulting from K-9: Whenever a K-9 is involved in damage to property or has alleged to have done so, the following procedures shall be adhered to:

a) The K-9 handler shall immediately notify the on-duty supervisor or command officer who shall investigate the incident (see G-2100 Complaint Procedure). The K-9 handler shall notify the K-9 Unit Commander as soon as possible.

b) The supervisor or command officer shall notify the on-duty watch commander or ADC.

c) The supervisor or command officer shall photograph the location and the extent of the alleged damage.

d) If a claim for repairs is made, the individual shall be advised to contact the Patrol Division Commander.

e) Prior to the end of the shift, the K-9 handler shall complete an appropriate report (incident or information) and forward the report to the investigating supervisor or command officer, the Patrol Division Commander and the K-9 Unit Commander.